

SENATE BILL 1223

By Oliver

AN ACT to amend Tennessee Code Annotated, Title 49,
Chapter 6, Part 36 and Title 68, Chapter 6, relative
to youth athletic activities.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-3601(c), is amended by
deleting subdivision (2) and substituting:

(2) Shall review the safety standards recommended for each level of recognition
provided as part of the safe stars advisory committee's "Safe Stars Initiative," and to
communicate with the safe stars advisory committee to ensure that all safety measures
are up to date for the LEA or public charter school.

SECTION 2. Tennessee Code Annotated, Section 49-6-3601(b), is amended by adding
the following as a new subdivision:

(4) Prior to a student participating in a school youth athletic activity, a student
must submit to the principal of the school in the LEA or the public charter school:

(A) A preparticipation medical evaluation form signed by a doctor of
medicine, osteopathic physician, physician assistant, or certified nurse
practitioner stating that the student has passed a physical examination, not prior
to April 15, and that in their opinion the student is physically fit to participate in a
school youth athletic activity; or

(B) A statement written and signed by the student's parent or legal
guardian or the student, if the student is eighteen (18) years of age or older,
declining a preparticipation medical evaluation on grounds of sincerely held
beliefs or practices.

SECTION 3. Tennessee Code Annotated, Section 49-6-3602, is amended by deleting the section and substituting:

(a) There is created a safe stars advisory committee to develop guidelines and other relevant materials to inform and educate students, parents, and coaches about:

(1) The nature and warning signs of sudden cardiac arrest and the risks associated with continuing to play or practice after experiencing one (1) or more symptoms of sudden cardiac arrest, which include fainting, difficulty breathing, chest pains, dizziness, and an abnormal racing heart rate;

(2) Electrocardiogram (EKG) testing; and

(3) The student's or parent's option to request, from the student's family medical provider, that an electrocardiogram (EKG) be administered in addition to the student's comprehensive initial preparticipation physical examination, at a cost to be incurred by the student or the student's parent.

(b) The safe stars advisory committee consists of the following members:

(1) The commissioner of education or the commissioner's designee;

(2) The commissioner of health or the commissioner's designee;

(3) A member of the education administration committee of the house of representatives, who is appointed by the speaker of the house of representatives;

(4) A member of the education committee of the senate, who is appointed by the speaker of the senate;

(5) A member of the health committee of the house of representatives, who is appointed by the speaker of the house of representatives; and

(6) A member of the health and welfare committee of the senate, who is appointed by the speaker of the senate.

(c) A member who is appointed pursuant to subdivision (b)(3), (b)(4), (b)(5), or (b)(6) serves until their successor is appointed or the member no longer meets the qualification to serve, whichever occurs first.

(d) The safe stars advisory committee shall:

(1) Develop a sudden cardiac arrest symptoms and warning signs information sheet that includes information about electrocardiogram (EKG) testing for purposes of § 49-6-3603. The information sheet must address the benefits and limitations of EKG testing;

(2) Develop the guidelines and materials under subsection (a);

(3) Publish the guidelines and other materials developed pursuant to subsection (a) on the department of education's and department of health's websites; and

(4) Meet at least once each year to review and update, if necessary, the guidelines and other materials developed pursuant to this section.

SECTION 4. This act takes effect July 1, 2025, the public welfare requiring it.